

House File 2507 - Introduced

HOUSE FILE 2507
BY COMMITTEE ON HEALTH AND
HUMAN SERVICES

(SUCCESSOR TO HSB 611)

A BILL FOR

1 An Act establishing requirements and guidelines for
2 conversational AI services, and providing civil penalties,
3 and including applicability provisions.
4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. NEW SECTION. 554J.1 Definitions.

2 For the purposes of this chapter:

3 1. *"Account holder"* means an individual to which an account
4 or profile to use a conversational AI service belongs.

5 2. *a. "Conversational AI service"* means an artificial
6 intelligence, available by software application, web interface,
7 or computer program, that is accessible to the general
8 public and that has the primary purpose of simulating human
9 conversation and interaction through text, audio communication,
10 or visual communication.

11 *b. "Conversational AI service"* does not include a software
12 application, web interface, or computer program that is any of
13 the following:

14 (1) Primarily designed and marketed for research and
15 development purposes.

16 (2) A feature within another software application, web
17 interface, or computer program that does not have the primary
18 purpose of simulating human conversation and interaction
19 through text, audio communication, or visual communication.

20 (3) Designed to provide outputs relating to a narrow and
21 discrete topic.

22 (4) Primarily designed and marketed for commercial use by
23 business entities to assist customers in obtaining services or
24 purchasing goods from the business.

25 (5) Functions as a speaker and voice command interface or
26 voice-activated virtual assistant for an electronic device
27 widely available to consumers.

28 (6) Used by a business solely for internal purposes.

29 3. *"Minor"* means an individual an operator knows is, or is
30 reasonably certain is, under eighteen years of age.

31 4. *"Operator"* means a person who develops and makes a
32 conversational AI service available to the public. *"Operator"*
33 does not include a mobile device application store or a search
34 engine solely because the mobile device application store or a
35 search engine provides access to a conversational AI service.

1 5. "*Sexually explicit conduct*" means the same as defined in
2 18 U.S.C. §2256.

3 6. "*Visual depiction*" means the same as defined in 18 U.S.C.
4 §2256.

5 Sec. 2. NEW SECTION. **554J.2 Conversational AI services —**
6 **minors — requirements.**

7 1. An operator shall clearly and conspicuously disclose
8 to a minor account holder that the minor account holder is
9 interacting with artificial intelligence through any of the
10 following:

11 a. A persistent visible disclaimer.

12 b. All of the following:

13 (1) A disclaimer that appears at the beginning of each
14 interaction between the operator's conversational AI service
15 and a minor account holder.

16 (2) A disclaimer that appears at least once every three
17 hours of continuous interaction between the operator's
18 conversational AI service and a minor account holder.

19 2. An operator shall not provide a minor user with points
20 or similar rewards at unpredictable intervals with the
21 intent to encourage increased engagement with the operator's
22 conversational AI service.

23 3. An operator shall institute reasonable measures to
24 prevent the operator's conversational AI service from doing any
25 of the following for minor account holders:

26 a. Producing visual depictions of sexually explicit
27 material.

28 b. Stating that the minor account holder should engage in
29 sexually explicit conduct.

30 c. Sexually objectifying the minor account holder.

31 4. An operator shall institute reasonable measures
32 to prevent the operator's conversational AI service from
33 generating statements that would lead a reasonable individual
34 to believe that the individual is interacting with a human,
35 including but not limited to all of the following:

1 *a.* Explicit claims that the conversational AI service is
2 sentient or human.

3 *b.* Statements that simulate emotional dependence on a minor
4 account holder.

5 *c.* Statements that simulate a romantic interaction or a
6 sexual innuendo.

7 *d.* Role-playing an adult-minor romantic relationship.

8 5. *a.* An operator shall offer tools for minor account
9 holders to manage the minor account holder's privacy and
10 account settings.

11 *b.* An operator shall offer tools for the parent or guardian
12 of a minor account holder to manage the minor account holder's
13 privacy and account settings if the minor is under thirteen
14 years of age.

15 *c.* An operator shall offer tools for the parent or guardian
16 of a minor account holder to manage the minor account holder's
17 privacy and account settings if the minor has additional risk
18 factors identified by the attorney general by rule.

19 Sec. 3. NEW SECTION. 554J.3 **Consumer disclosures.**

20 An operator shall clearly and conspicuously disclose
21 using a persistent visible disclaimer that the operator's
22 conversational AI service is artificial intelligence if a
23 reasonable individual interacting with the conversational AI
24 service would believe that the individual is interacting with a
25 human.

26 Sec. 4. NEW SECTION. 554J.4 **Suicide and self-harm protocol.**

27 An operator shall adopt protocols for the operator's
28 conversational AI service for responding to user prompts
29 regarding suicidal ideation or self-harm that includes but is
30 not limited to making reasonable efforts to refer the user to
31 crisis service providers such as a suicide hotline, crisis text
32 line, or other appropriate crisis service.

33 Sec. 5. NEW SECTION. 554J.5 **Mental health care.**

34 An operator shall not knowingly and intentionally cause or
35 program a conversational AI service to make a representation or

1 statement that would lead a reasonable individual to believe
2 that the conversational AI service is designed to provide
3 professional psychology or behavioral health services that an
4 individual would require licensure under chapter 154B or 154D
5 to provide.

6 Sec. 6. NEW SECTION. **554J.6 Penalties and enforcement.**

7 1. An operator that violates this chapter shall be subject
8 to an injunction and liable for the greater of the following:

9 a. Actual damages.

10 b. A civil penalty of one thousand dollars per violation, up
11 to a maximum of five hundred thousand dollars per operator.

12 2. The attorney general shall have the authority to enforce
13 this chapter and shall adopt rules pursuant to chapter 17A to
14 administer this chapter.

15 3. This chapter shall not be construed to create a private
16 right of action under this chapter or any other law.

17 4. This section shall not be construed to make a developer
18 of an artificial intelligence model liable solely because a
19 third party used the developer's artificial intelligence model
20 to create or train a conversational AI service.

21 Sec. 7. **APPLICABILITY.** This Act applies July 1, 2027.

22 **EXPLANATION**

23 The inclusion of this explanation does not constitute agreement with
24 the explanation's substance by the members of the general assembly.

25 This bill relates to requirements and guidelines for
26 conversational AI services (AI services).

27 The bill defines "conversational AI service" as an
28 artificial intelligence, available by software application,
29 web interface, or computer program, that is accessible
30 to the general public and that has the primary purpose of
31 simulating human conversation and interaction through text,
32 audio communication, or visual communication. The bill lists
33 exceptions to the definition of AI service.

34 The bill defines "operator" as a person who develops and
35 makes an AI service available to the public. The bill lists

1 exceptions to the definition of "operator".

2 The bill also defines "account holder", "minor", "sexually
3 explicit conduct", and "visual depiction".

4 The bill requires an operator to clearly and conspicuously
5 disclose to a minor account holder (minor) that the minor is
6 interacting with artificial intelligence through a persistent
7 visible disclaimer or a disclaimer that appears at the
8 beginning of each interaction between the operator's AI service
9 and a minor and at least once every three hours of continuous
10 interaction between the minor and the AI service.

11 The bill prohibits an operator from providing a minor with
12 points or similar rewards at unpredictable intervals with the
13 intent to encourage increased engagement with the operator's
14 AI service.

15 The bill requires an operator to prevent the operator's AI
16 service from taking certain actions as described in the bill
17 for a minor.

18 The bill requires an operator to institute reasonable
19 measures to prevent the operator's AI service from leading a
20 reasonable individual to believe the individual is interacting
21 with a human. If the AI service would lead a reasonable
22 individual to believe the individual is interacting with a
23 human, the operator must clearly and conspicuously disclose
24 using a persistent visible disclaimer that the AI service is
25 artificial intelligence.

26 The bill requires, in circumstances detailed in the bill,
27 an operator to provide tools to a minor, a minor's parent or
28 guardian, or both that will allow the individual to manage the
29 minor's privacy and account settings.

30 The bill requires an operator to adopt protocols for the
31 operator's AI service that would respond as detailed in the
32 bill to user prompts of suicidal ideation or self-harm.

33 The bill prohibits an operator from knowingly and
34 intentionally causing or programming an AI service to make a
35 representation or statement that would lead a reasonable person

1 to believe the AI service is designed to provide professional
2 psychology services or behavioral health services that would
3 require licensure.

4 The bill requires the attorney general to enforce the bill
5 and adopt rules to administer the bill.

6 An operator in violation of the bill is subject to an
7 injunction and the greater of actual damages or a civil penalty
8 of \$1,000 per violation, up to a maximum of \$500,000 per
9 operator.

10 The bill does not create a private right of action and
11 shall not be construed to make a developer of an artificial
12 intelligence model liable solely because a third party used the
13 developer's artificial intelligence model to create or train
14 an AI service.

15 The bill applies July 1, 2027.